

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA**

Tentative Ruling

**2026CUBC071040: ALEXANDER CAPKA-JONES vs NATIONAL COLLEGIATE
ATHLETIC ASSOCIATION**

08/17/2026 in Department 21

Ex Parte Application For Admission Pro Hac Vice of Blake Sercye

Tentative Rulings. Parties and counsel appearing for oral argument should address the tentative decision. Parties may submit on the tentative decision by email, with a copy to all other parties in the matter, to courtroom21@ventura.courts.ca.gov before 8:00 a.m. on the day set for the hearing, with a subject line that includes “SUBMISSION ON TENTATIVE”, Case Number, Title and Party. If fewer than all parties submit on the tentative, the hearing will proceed, and the tentative ruling is subject to change. The clerk cannot advise if you should still appear or not. The decision of whether to appear for a hearing is to be made by the parties and their counsel. (Dept. 21 Rules & Procedures, p. 4, § II.I.)

The following is a statement of the Court’s tentative ruling. The Court may adopt, modify or reject the tentative ruling after hearing. The tentative ruling has no legal effect unless and until adopted by the Court.

Motion: Ex parte Application by Plaintiff Alexander Capka-Jones for an order admitting Blake Sercye (“Sercye” or “Applicant”) to appear pro hac vice.

Tentative Ruling: Upon a showing of proof of service on opposing counsel and the State Bar of California, the application will be GRANTED. If no proof of service is provided, the matter shall be continued to allow the Applicant to cure this defect.

Discussion:

A. The Attorney’s Application Sets Forth the Basic Information Required By California Rule of Court 9.40

California Rule of Court 9.40, subdivisions (c) and (d) set for the basic requirements for an application to appear as counsel pro hac vice and provides, in pertinent part, that:

(c) Application

(1) Application in superior court

A person desiring to appear as counsel pro hac vice in a superior court must file with the court a verified application together with proof of service by mail in accordance with Code of Civil Procedure section 1013a of a copy of the application and of the notice of hearing of the application on all parties who have appeared in the cause and on the State Bar of California at its San Francisco office. The notice of hearing must be given at the time prescribed in Code of Civil Procedure section 1005 unless the court has prescribed a shorter period....[¶]

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(d) Contents of application

The application must state:

- (1) The applicant's residence and office address;
- (2) The courts to which the applicant has been admitted to practice and the dates of admission;
- (3) That the applicant is a member in good standing in those courts;
- (4) That the applicant is not currently suspended or disbarred in any court;
- (5) The title of court and cause in which the applicant has filed an application to appear as counsel pro hac vice in this state in the preceding two years, the date of each application, and whether or not it was granted; and
- (6) The name, address, and telephone number of the active member of the State Bar of California who is attorney of record.

Here, Applicant filed a declaration in support of the application addressing the information in Rule 9.40(d)(1) through (d)(6) above.

**B. The Attorney Submits Proof of Payment to the California State Bar and
Proof of Service of Notice of Hearing on the State Bar**

Pursuant to California Rule of Court 9.40(c)(1), applicants must serve notice of the hearing on their application on all parties and the State Bar. Moreover, Rule 9.40(e) provides, in pertinent part, that: “An applicant for permission to appear as counsel pro hac vice under this rule must pay a reasonable fee not exceeding \$50 to the State Bar of California with the copy of the application and the notice of hearing that is served on the State Bar. The Board of Governors of the State Bar of California will fix the amount of the fee”

Here, there is no proof of service filed with the Court.

As to the \$50.00 fee, Mr. Sercye’s declaration states that the fee has been paid to the State Bar and that service was provided. Upon a showing that Applicant has complied with Rule 9.40, subdivisions (c)(1) and (e), the Court will reach the merits of the Application. Otherwise, the matter shall be continued to allow Applicant an opportunity to cure the deficiency pertaining to service on all parties and the State Bar.

C. The Substantive Merits of the Applications

Applicant moves ex parte for an order approving his application for admission pro hac vice. The urgency for this motion is due to another ex parte hearing set for 8/18/26, that requires the special knowledge and expertise of the applicant. The Court finds good cause for the ex parte and will turn to the merits of the motion.

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Rule 9.40, subdivisions (a) and (b) provide that:

(a) Eligibility

A person who is not a member of the State Bar of California but who is a member in good standing of and eligible to practice before the bar of any United States court or the highest court in any state, territory, or insular possession of the United States, and who has been retained to appear in a particular cause pending in a court of this state, may in the discretion of such court be permitted upon written application to appear as counsel pro hac vice, provided that an active member of the State Bar of California is associated as attorney of record. No person is eligible to appear as counsel pro hac vice under this rule if the person is:

- (1) A resident of the State of California;
 - (2) Regularly employed in the State of California; or
 - (3) Regularly engaged in substantial business, professional, or other activities in the State of California.
- (b) Repeated appearances as a cause for denial Absent special circumstances, repeated appearances by any person under this rule is a cause for denial of an application.

Here, Applicant declares facts to show that he is not a resident of this state, he is not regularly employed in this state, he has not applied to appear pro hac vice in California in the past two years, and he is in good standing in the jurisdictions where he is licensed.

Accordingly, the application has merit. Upon a showing of proof of service on all parties and the State Bar of California the application will be GRANTED. If no proof of service is provided, the matter shall be continued to allow the Applicant to cure this defect.